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Supreme Court of British Columbia â Vancouver No. S-268841

No. S-268841
Vancouver Registry

IN THE SUPREME COURT OF BRITISH COLUMBIA

BETWEEN:

PACIFIC RIM HOLDINGS LTD. PLAINTIFF

AND:

NORTH SHORE LOGISTICS INC. DEFENDANT

FORM 33 (RULE 8-1(9))
APPLICATION RESPONSE

Application response of: North Shore Logistics Inc. (Defendant)

THIS IS A RESPONSE to the Notice of Application of the Plaintiff filed October 15, 2026.

Part 1: ORDERS CONSENTED TO

None.

Part 2: ORDERS OPPOSED

The defendant opposes all relief sought in paragraphs 1, 2, and 3 of Part 1 of
the Notice of Application.

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Part 3: ORDERS PROPOSED

1. The application be dismissed with costs to the defendant in any event of the cause.

2. In the alternative, if production of the Quarterly Operations and Logistics Audit Reports is ordered, production be limited strictly to Section 4 ("Richmond Facility Throughput") and be subject to a two-tier confidentiality ring restricting inspection exclusively to independent legal counsel and independent accounting experts retained herein.

Part 4: FACTUAL BASIS

1. The defendant’s initial List of Documents delivered August 18, 2026, fully complies with Rule 7-1(1) by listing all documents that could prove or disprove a material fact in issue.

2. The third-party pallet logs demanded by the plaintiff contain proprietary pricing schedules and inventory ratios belonging to non-party commercial clients who utilize the Richmond terminal under strict non-disclosure covenants.

3. The unredacted portions of the Quarterly Audit Reports contain proprietary corporate

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margin formulas completely irrelevant to the fee overcharge claim pleaded by the plaintiff.

4. Compelling blanket, unredacted production without a protective confidentiality order would inflict serious commercial prejudice upon the defendant in an intensely competitive market.

Part 5: LEGAL BASIS

1. Supreme Court Civil Rules, Rule 7-1(11), 7-1(18), and Rule 1-3 (Proportionality).
2. The court retains inherent jurisdiction and discretion under Rule 7-1(18) to deny production or impose terms restricting access to commercially sensitive records not directly relevant to the core issues in the pleadings.

Part 6: MATERIAL TO BE RELIED ON

1. Affidavit #1 of Derek Chen, filed October 23, 2026.
2. Pleadings filed herein.

The respondent estimates that the application will take 30 minutes.

Dated: October 24, 2026.

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Kendra T. MacIntyre
Counsel for the Defendant